tive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands in Alaska are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral-leasing laws nor the disposal of materials under the act of July 31, 1947 (61 Stat. 681; 69 Stat. 367; 30 U.S.C. 601–604) as amended, and reserved for use of the Forest Service, Department of Agriculture, as the Cascade Creek Public Service Site:

Beginning at Corner #3, on North corner of lot 10, U.S. Survey #2418, thence S 30°00′ E 396 feet, more or less, to corner 2 of lot 10 of said survey; thence S 60°00′ W on the 2–1 line of lot 10 of said survey extending to the mean high tide level of Sitka Sound, a distance of 592 feet, more or less; thence meandering along the mean high tide level of Sitka Sound in a northwesterly direction approximately 400 feet to its intersection with an extension of the 3–4 line of lot 10 of said survey; thence N 60°00′ E 545 feet, more or less, to the point of beginning.

The tract described contains 5.5 acres.

2. Public Land Order No. 786 of January 5, 1952, so far as it withdrew the above described lands for use of the Alaska Communications System, is hereby revoked.

ROGER ERNST,
Assistant Secretary of the Interior.

AUGUST 21, 1959.

[F.R. Doc. 59–7141; Filed, Aug. 27, 1959; 8:46 a.m.]

[Public Land Order 1953]

[119085]

CALIFORNIA

Revoking Executive Order No. 1326 of March 29, 1911, Which Withdrew Land for Use of the Forest Service as Hornbrook Administrative Site

By virtue of the authority vested in the President by the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 1326 of March 29, 1911, withdrawing the following-described public lands for use of the Forest Service as the Hornbrook Administrative Site, is hereby revoked:

MT. DIABLO MERIDIAN

T. 47 N., R. 6 W.,
Sec. 8, SW¼NW¼, W½SE¼NW¼, and W½NE¼SW¼.

The areas described aggregate 80 acres.

2. The State of California has waived the preference right of application granted to it by subsection (c) of section 2 of the act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852).

3. The land is located about two miles north of the community of Hornbrook, Siskiyou County and about six miles south of the Oregon-California Boundary. The land slopes to the south and west, is rolling and cut by three well defined draws. Vegetation is mixed brush and oak woodland with an understory of mixed grasses.

4. Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public land laws and the regulations in 43 CFR will be received at once by the Manager named below. Priorities in the consideration of such applications will be recognized as follows:

(1) Applications under the homestead, desert land and small tract laws by veterans of World War II and the Korean Conflict, and by others claiming preference under the act of September 27, 1944 (58 Stat. 747; 43 U.S.C. 279–284) as amended, filed at or before 10:00 a.m. on September 26, 1959, shall be considered as simultaneously filed at that time. Rights under such preference right applications after that hour and before 10:00 a.m. on December 26, 1959, will be governed by the time of filing.

(2) All valid applications under the nonmineral public land laws other than those coming under subparagraph (1) above, presented prior to 10:00 a.m. on December 26, 1959, will be considered as simultaneously filed at that hour. Any rights under such applications filed thereafter will be governed by the time of filing.

(3) All applications under subparagraphs (1) and (2) above, shall be subject to those from persons having prior existing valid settlements rights, preference rights conferred by existing law, and equitable claims subject to allowance and confirmation.

b. The lands have been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. They will open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a.m. on December 26, 1959.

5. Persons claiming preferential consideration must submit evidence of their settlement.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Sacramento, California.

ROGER ERNST,
Assistant Secretary of the Interior.

AUGUST 21, 1959.

[F.R. Doc. 59–7142; Filed, Aug. 27, 1959; 8:46 a.m.]

[Public Land Order 1954]

[667971]

[894072]

OREGON

Partially Revoking Executive Order of March 8, 1920 (Public Water Reserve No. 70) and Departmental Orders of September 19, 1919 and January 15, 1925 (Stock Driveway Withdrawals No. 96 and No. 175)

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, and by virtue of the authority vested in the Secretary of the Interior by section 10 of the act of December 29, 1916 (39 Stat. 865; 43 U.S.C. 300), as amended, it is ordered as follows:

1. The Executive order of March 8, 1920, which established Public Water Reserve No. 70, and the departmental orders of September 19, 1919 and January 15, 1925, which established Stock Driveway Withdrawals No. 96 and 175, respectively, are hereby revoked so far as they affect the following-described lands:

WILLAMETTE MERIDIAN

[667971]

T. 2 S., R. 16 E.,
Sec. 29, NW¼NW¼;
Sec. 30, NE¼NE¼.

[894072]

T. 9 S., R. 18 E.,—
Sec. 20, SE¼NE¼, and NE¼SE¼;
Sec. 21, NE¼NW¼, and S½NW¼.

The areas described aggregate 280 acres.

2. The NE¼SE¼, section 20, T. 9 S., R. 18 E., has been patented.

3. The State of Oregon has waived the preference right of application granted to it by subsection (c) of section 2 of the Act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852).

4. The lands in T. 9 S., R. 18 E., lie in the northeastern part of Jefferson County. Those in T. 2 S., R. 16 E., are on the breaks of the Deschutes River Canyon. The lands are located some two miles from any public road.

5. No application for the lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

6. Subject to any valid existing rights and the requirements of applicable law, the lands, excepting those described in paragraph 2 of this order, are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other